

HOSTFLUENCER AMBASSADOR AGREEMENT

(Hostfluencer, a Subsidiary of LVL Holding Inc.)

This **Ambassador Agreement (“Agreement”)** is entered into by and between **Hostfluencer, Inc.**, a Delaware corporation and wholly-owned subsidiary of **LVL Holding Inc.** (collectively, “Company”), and the undersigned creator (“Ambassador”). The Company and Ambassador are each a “Party” and collectively the “Parties.” By participating in the Hostfluencer Ambassador Program (“Program”), Ambassador agrees to all terms herein.

1. Program Purpose

The Program enables Ambassador to promote Hostfluencer, refer hosts, creators, brands, restaurants, and experiences, and earn commissions tied to completed collaborations and referred subscriber plans. Ambassador acknowledges Hostfluencer operates *under the umbrella and strategic direction of LVL Holding Inc.*

2. Eligibility & Enrollment

Ambassador represents and warrants that:

- They are at least 18 years old.
- They have authority to enter this Agreement.
- Their participation does not violate any contracts or platform policies.
- They own all rights to their promotional content.

Hostfluencer, as a subsidiary of LVL Holding Inc., reserves full discretion to approve, deny, or terminate participation.

3. Ambassador Obligations

3.1 Monthly Deliverables

Ambassador must create **a minimum of three (3) social media posts per calendar month** promoting Hostfluencer, its features, or partner offerings.

3.2 Conduct Requirements

Ambassador agrees to maintain ethical, professional conduct and avoid:

- Fraudulent referrals,
- Misleading statements,
- Illegal or harmful activities,
- Any conduct that could damage the reputation of Hostfluencer or LVL Holding Inc.

Violation may result in immediate termination and forfeiture of unpaid commissions.

4. Commission Structure

4.1 Collaboration Referral Commissions

For referrals that lead to completed collaborations:

- **\$500 USD** per stay collaboration
- **\$150 USD** per restaurant or experience collaboration

A collaboration is “completed” only when the full booking, deliverables, and host confirmation are fulfilled.

4.2 Recurring Creator Plan Commissions

Ambassador earns:

- **20% recurring monthly commission** on each referred creator's paid subscription plan,

- For as long as the subscriber remains active and paid.

4.3 Forfeiture

Unpaid commissions may be forfeited if:

- Ambassador violates this Agreement,
- Referrals are fraudulent,
- Deliverables are unmet,
- Ambassador is removed for cause.

5. Payment Terms

All payments are issued **directly via the Hostfluencer platform** through **Stripe**, the Company's payment partner.

Ambassador:

- Must maintain a valid Stripe payout account,
- Is responsible for all tax obligations,
- Acknowledges Hostfluencer and LVL Holding Inc. are not responsible for delays from Stripe, banks, or third-party processors.

6. Intellectual Property Rights

6.1 License Granted to Hostfluencer

Ambassador grants Hostfluencer—**and its parent company LVL Holding Inc.**—a perpetual, worldwide, irrevocable, royalty-free, sublicensable license to use and repurpose all content created under the Program.

6.2 Company IP

Ambassador gains no rights or claims to Hostfluencer or LVL Holding Inc.'s trademarks, systems, branding, patents, or proprietary materials.

7. Confidentiality

Ambassador acknowledges they may receive confidential, proprietary, or strategic information belonging to Hostfluencer or LVL Holding Inc., including:

- Business models,
- Partnerships,
- Technology,
- Pricing,
- Product roadmaps.

Ambassador agrees not to disclose or misuse any such information during or after the term of this Agreement.

8. Representations, Warranties & Indemnification

Ambassador represents that:

- Their promotional content will be truthful and compliant with all laws,
- They have full rights to all content,
- They will follow FTC disclosure rules,
- They will honor all platform guidelines.

Ambassador agrees to **indemnify, defend, and hold harmless** Hostfluencer, LVL Holding Inc., and their officers, directors, employees, agents, and affiliates from any claim, loss, liability, damage, or legal action stemming from:

- Ambassador's breach of this Agreement,
- Misconduct or negligence,
- IP infringement,
- Illegal or misleading content,
- Platform violations,
- Damages caused to third parties.

This indemnity survives termination.

9. Liability Waiver & Release

TO THE MAXIMUM EXTENT PERMITTED BY LAW, AMBASSADOR FULLY RELEASES AND DISCHARGES:

Hostfluencer, Inc., LVL Holding Inc., and all affiliated entities

from any and all claims, liabilities, losses, damages, or causes of action related to:

- Lost opportunities or earnings,
- Platform bans (Meta, TikTok, YouTube, etc.),
- Payment delays or processor issues,
- Booking disputes,
- Content takedowns or suppression,
- Reputational impacts,
- Third-party claims arising from Ambassador's conduct or content.

AMBASSADOR ACCEPTS FULL RESPONSIBILITY FOR ALL RISKS OF PARTICIPATION.

10. Limitation of Liability

In no event shall Hostfluencer or LVL Holding Inc. be liable for:

- Indirect damages,
- Incidental damages,
- Consequential damages,
- Punitive damages,
- Special damages,
- Loss of business, profits, or opportunities.

Cap of Liability:

Total liability shall not exceed the total commissions paid to Ambassador in the *preceding six (6) months*.

11. Term & Termination

11.1 Term

Effective upon enrollment and ongoing unless terminated.

11.2 Termination by Company

Hostfluencer or LVL Holding Inc. may terminate:

- At any time, with or without cause,
- Immediately, for violations of this Agreement.

11.3 Termination by Ambassador

Ambassador may terminate with written notice.

11.4 Effects of Termination

- Valid completed commissions will be paid.
- Recurring subscription commissions stop immediately.
- Ambassador must stop using Hostfluencer brand assets.
- Hostfluencer retains perpetual license to all created content.

12. Governing Law & Dispute Resolution

This Agreement is governed by the laws of the **State of Delaware**.

All disputes shall be resolved exclusively through **binding arbitration** in Delaware under AAA rules, with no class or collective actions permitted.

13. Miscellaneous

- **Entire Agreement:** This document supersedes all prior or contemporaneous agreements.
- **Amendments:** Hostfluencer may update terms at any time; continued participation constitutes acceptance.
- **Assignment:** Ambassador may not assign rights or obligations; the Company may assign to LVL Holding Inc. or any subsidiary.
- **Severability:** Invalid clauses do not affect the remaining enforceable terms.
- **Relationship:** Ambassador is an independent contractor, not an employee, partner, agent, or representative.

14. Acceptance

By signing or electronically agreeing, Ambassador acknowledges they have read, understood, and agree to all terms of this Agreement.

15. Signatures

IN WITNESS WHEREOF, the Parties have executed this Ambassador Agreement as of the dates below.

Ambassador

Name: _____

Signature: _____

Date: _____

Hostfluencer, Inc.

A Subsidiary of LVL Holding Inc.

Authorized Representative: _____

Title: _____

Signature: _____

Date: _____